IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS
FORT WORTH DIVISION

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF TEXAS
FORT WORTH DIVISION

JERALD DEON CONEY, Plaintiff, *Plaintiff* v. WORKERS UNITED SOUTHWEST REGIONAL JOINT BOARD, et al., Defendants. WORKERS UNITED SOUTHWEST REGIONAL JOINT BOARD, et al. *Defendants*	§ § § § §	CIVIL ACTION NO. 4:26-cv-00713-P-BJ CIVIL ACTION NO. 4:26-cv-00713-P-BJ

DEFENDANTS' BRIEF IN SUPPORT OF RENEWED MOTION TO DISMISS

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COME NOW Defendants Southwest Regional Joint Board, Jean Harvey, Workers United and Lynne Fox (collectively "Defendants" or "Union Defendants") and respectfully file this Motion to Dismiss pursuant to Rules 12(b)(1), 12(b)(4), 12(b)(5) and 12(b)(6) of the Federal Rules of Civil Procedure and would show as follows.

I. INTRODUCTION AND SUMMARY OF ARGUMENT

The Plaintiff, an employee formerly represented by the Southwest Regional Joint Board, a labor union, sues the Union and one of its representatives, alleging discrimination and a failure of the Union's duty of fair representation ("DFR"). The Plaintiff also sues the international union and one of its representatives. The Court should dismiss the claims because the Plaintiff has failed to join his former employer in this litigation or to allege that the employer breached its collective bargaining agreement with the Union. Additionally, the Plaintiff filed this claim after the six-month limitations period expired. Furthermore, the claims against Defendants Workers United, Jean Hervey and Lynn Fox must be dismissed because the Plaintiff has not properly served these defendants. Moreover, the Plaintiff has failed to plead plausible facts to state claims against any defendant. Additionally, most of the causes of action the Plaintiff asserts do not give rise to individual liability, so the claims against defendants. Moreover, the Plaintiff has failed to plead plausible facts to state claims against any Hervey and Fox must be dismissed.

Deference to pro se litigants does not save the fatal flaws in the Plaintiff's complaint. Because some of the failures cannot be remedied by repleading and because the Plaintiff has already received and taken another opportunity to replead, the dismissal must be with prejudice.

II. ISSUES PRESENTED

The motions present the following issues:

- Should the DFR claims be dismissed where the Plaintiff did not sue his former employer and did not allege that the employer breached the collective bargaining agreement with the Union?
- Should the DFR claims be dismissed where the Plaintiff did not file his lawsuit before expiration of the six-month limitations period?

- Should all claims against Defendants Jean Hervey, Workers United and Lynne Fox be dismissed where service has not been effectuated on them?
- Should the DFR claims be dismissed where the Plaintiff did not file suit prior to the expiration of the six-month limitations period?
- Should all claims against all Defendants be dismissed where the Plaintiff has not alleged sufficient facts to plead plausible causes of action and where he has made no allegations against Workers United or Lynn Fox?
- Should the claims against Hervey and Fox be dismissed where the causes of action that the Plaintiff asserts do not give rise to individual liability?

III. FACTUAL AND PROCEDURAL BACKGROUND

Plaintiff Jerald Deon Coney (hereinafter "Plaintiff" or "Coney") brings claims against Defendants Southwest Regional Joint Board and Workers United. Coney appears to sue under Title VII, the Americans with Disabilities Act, the Age Discrimination in Employment Act and 42 U.S.C. § 1981 and Chapter 21 of the Texas Labor Code (the Texas Commission on Human Rights Act). Amd. Complt. (Doc. 24) at 1. Coney appears to sue for wrongful termination, intentional and reckless infliction of emotional distress, employment discrimination, harassment, hostile work environment, failure to prevent discrimination and harassment, constructive termination, breach of contract, failure of duty of representation and retaliation. *Id.* at 1, 2 & 16.[2] The Plaintiff alleges

Defendants filed a Motion to Dismiss pursuant to Rules 12(b)(1), 12(b)(4), 12(b)(5) and 12(b)(6), and a Motion for a More Definite Statement pursuant to Rule 12(e). Docs. 17. On August 11, 2026, the Plaintiff filed responses to Defendants' motions. Docs. 21 & 22. On the same day, the Court ordered the Plaintiff to amend his complaint. Doc. 23. The Plaintiff filed an Amended Complaint on August 17, 2026, and a second Amended Complaint on August 26, 2026. Docs. 24 & 27. The Court struck

[1] It is unclear whether the Plaintiff brings claims against Jean Hervey (identified as "Jene") and Lynne Fox. The Plaintiff lists Ms. Fox in the case caption, but makes no factual allegations against either individual other than naming them on exhibits. See Amd. Complt. (Doc. 24). at 1, 20, Ex. G, Ex. I & Ex. K.

[2] The Plaintiff's Original Complaint also cited to the Labor Management Reporting and Disclosure Act and the National Labor Relations Act, reference to those statutes is absent in the Amended Complaint. See Orig. Complt. at 3. The Original Complaint also mentioned other contract, contract product liability, franchise, assault, libel & slander, other personal injury, personal injury, medical malpractice, personal injury, product liability, other civil rights, employment, ADA/employment, ADA/other, FLSA, Labor/Management relations, FMLA, other labor litigation and

and unfiled the second Amended Complaint on August 26, 2026. Doc. 28. The Plaintiff filed a Motion for Leave to File an Amended Complaint on August 28, 2026, which remains pending. Doc. 29.

IV. ARGUMENT AND AUTHORITIES

This section lays out the legal standards governing motions to dismiss pursuant to Rules 12(b)(1), 12(b)(6), 12(b)(5), and 12(b)(6) of the Federal Rules of Civil Procedure. After laying out the applicable legal standards, this section applies those standards to the facts before the Court.

A. The Court Must Dismiss the Complaint Because the Plaintiff Has Not Alleged a Breach of the Collective Bargaining Agreement by His Employer and His Claim is Time-Barred

The Court must have subject-matter jurisdiction over a claim. A defendant may challenge a court's jurisdiction by filing a motion to dismiss under Rule 12(b)(1). This section explains the standard for such motions, as well as the requirements for invoking the Court's jurisdiction on a claim alleging a breach of a union's duty of fair representation.

1. Legal Standards for Motions to Dismiss Under Rule 12(b)(1)

A court must dismiss a claim when the court does not have jurisdiction over the claim. "A case is properly dismissed for lack of subject matter jurisdiction when the court lacks the statutory or constitutional power to adjudicate the case." *Ayanbadejo v. Chertoff*, 462 F. Supp. 2d 736, 740 (S.D. Tex. 2006) (citing *Krim v. pcOrder.com, Inc.*, 402 F.3d 489, 494 (5th Cir. 2005)), *rev'd in part*, 517 F.3d 273 (5th Cir. 2008). The plaintiff, as the party asserting jurisdiction, bears the burden to overcome a motion to dismiss under Rule 12(b)(1). *Ramming v. U.S.*, 281 F.3d 158, 161 (5th Cir. 2001).

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2. A Plaintiff Alleging a DFR Breach Must Sue the Employer for CBA Breach

Where a union member alleges that he was unlawfully discharged by his employer and that his union breached the duty of fair representation, the employee must demonstrate that the employer violated a collective bargaining agreement in discharging the employee in order to succeed in a claim against the employer, the union or both. Whether the employee sues both the labor union and the employer or only one of those entities, he must prove the same two facts to recover money damages: that the employer's action violated the terms of the collective-bargaining agreement and that the union breached its duty of fair representation." *Chauffeurs, Teamsters & Helpers, Local No. 391 v. Terry*, 494 U.S. 558, 564 (1990) (*citing DelCostello v. Teamsters*, 462 U.S. 151, 164-165 (1983)). *See also Williams v. Cytec Indus., Inc.*, No. Civ.A. 04-761, 2005 WL

Where a union member alleges that he was unlawfully discharged by his employer and that his union breached the duty of fair representation, the employee must demonstrate that the employer violated a collective bargaining agreement in discharging the employee in order to succeed in a claim against the employer, the union or both." Whether the employee sues both the labor union and the

employer or only one of those entities, he must prove the same two facts to recover money damages: that the employer's action violated the terms of the collective-bargaining agreement and that the union breached its duty of fair representation." Chauffeurs, Teamsters & Helpers, Local No. 391 v. Terry, 494 U.S. 558, 564 (1990) (citing DelCostello v. Teamsters, 462 U.S. 151, 164-165 (1983)).

In a "hybrid claim" alleging that the employer's discharge of the employee violated a collective bargaining agreement and that the union breached its duty of fair representation, "the two constituent claims . . . are interdependent; if the first claim anchored in the employer's alleged breach of the collective bargaining agreement fails, then the breach of duty of fair representation claim against the union must necessarily fail with it." *White v. Anchor Motor Freight, Inc.*, 899 F.2d 555, 559 (6th Cir. 1990) (affirming directed verdict against employee alleging breach of duty of fair representation). A DFR plaintiff must also establish he exhausted the remedies under the applicable CBA. *Escamilla v. United Food & Commercial Workers Int'l Union AFL-CIO CLC Local No. 514T*, 209 F. Supp. 2d 653, 657 (N.D. Tex. 2002).

Here, the Plaintiff has neither sued the employer in this lawsuit nor alleged the employer breached the CBA.[3] The Plaintiff has sued his former employer in a separate case. Exhibit 1. While the Plaintiff references the CBA in both cases, he does not allege in either case that the employer violated the CBA. Amd. Complt. at 10 ¶¶ 42 & 45, 20, Ex. G.[5]

Because the Plaintiff has not joined the employer in this litigation and does not allege that his

[3] While the Amended Complaint has multiple references to TJX as a defendant, this appears to be a clerical error. The Plaintiff did not include TJX in the case caption, and the Plaintiff has not requested that a summons be issued naming TJX as a defendant in this matter. See Doc. 24 (1 32, 32-1 (Plaintiff's requests for issuance of summonses to Defendants Southwest Regional Joint Board and Lynne Fox). The Plaintiff's proposed Second Amended Complaint states that the only contractual employment relationship" between Plaintiff and the Southwest Regional Joint Board. Doc. 29-1 at 2 ¶ 1. While that is not the operative complaint in this litigation, a review of the rest of the proposed Second Amended Complaint reveals it is nearly identical to the operative complaint, and that the employment relationship was between the Plaintiff and TJX, not the Union Defendants.

[4] In considering a 12(b)(6) motion, the Court may take judicial notice of public records whose authenticity is not disputed. *Spears*, 2014 WL 2730407 at *5; *Tucker*, 2013 WL 1588067 at *6.

[5] The Amended Complaint comes closest in its single mention of "breech [*sic*] of contract" on its cover page. Amd. Complt. (Doc. 24) at 1. However, the Plaintiff alleges no facts to support such a claim. The Plaintiff's proposed Second Amended Complaint references the CBA, alleging that his first write-up was before the CBA contract was signed. Doc. 29-1 at 3 ¶ 6. This is not the operative complaint, and this allegation is that the employer's discipline of him *predated* the CBA. This is not an allegation that the employer *breached* the CBA, which, under his theory, did not exist at the time of the writeup. In any event, while the Plaintiff alleges he exhausted EEOC remedies, he has failed to allege that he exhausted the remedies available under the CBA, as required by DFR case law. Amd. Complt. (Doc.

3. Statute of Limitations for DFR Claim

Section 10(b) of the National Labor Relations Act, 29 U.S.C. § 160(b), provides that "no complaint shall issue based upon any unfair labor practice occurring more than six months before the filing of the charge with the Board and the service of a copy thereof upon the person against whom such charge is made." Section 10(b) of the NLRA is a statute of limitations for DFR claims. *Galindo v. Stoody Co.*, 793 F.2d 1502, 1509 (9th Cir. 1986). The statute of limitations for a DFR claim begins to run when the employee knows or should know of the breach of the duty of fair representation, and that the LMRA expires six months after the alleged breach. DelCostello, 462 U.S. at 169-72 (applying LMRA's six-month statute of limitations for unfair labor practice claims in a duty of fair representation case); Miranda v. Nat'l Postal Mail, 219 F. App'x 340, 345 (5th Cir. 2007); Smith v. Int'l Org. of Masters, Mates & Pilots, 296 F.3d 380, 382-83 (5th Cir. 2002); Barrett v. Ebasco Constructors, Inc., 868 F.2d 170, 171 (5th Cir. 1989); Richardson v. United Steelworkers of Am., 864 F.2d 1162,

1167 (5th Cir. 1989). "A cause of action under a duty of fair representation claim accrues when the union member knew or reasonably should have known that the breach occurred." Gerhardt v. Air Transp. Loc. 557, No. CIV.A. H-09-3314, 2011 WL 666500, at *3 (S.D. Tex. Feb. 14, 2011).

The Plaintiff filed this lawsuit on June 11, 2026. Orig. Complt. (Doc. 1) at 1. Because the Plaintiff filed the complaint between eight and eighteen months after the six-month statute of limitations period, his duty of fair representation claims are time-barred and must be dismissed pursuant to Rule 12(b)(1) because the Court has no jurisdiction over them.[6] Because repleading would not allow the Plaintiff to overcome this flaw, the Court should dismiss his duty of fair representation with prejudice. *Martin's Herend Imports, Inc. v. Diamond & Gem Trading United States of Am. Co.*, 195 F.3d 765, 771 (5th Cir. 1999) (A district court acts within its discretion when dismissing a motion to amend that is frivolous or futile); *Stripling v. Jordan Prod. Co., LLC*, 234 F.3d 863, 872–73 (5th Cir. 2000) ("futility" means the amended complaint would fail to state a claim upon which relief could be granted) (collecting cases).

B. The Court Must Dismiss the Claims Against Defendants Workers United, Hervey and Fox Due to Insufficient Service[7]

Another requirement for the exercise of a court's jurisdiction over defendants is proper service. This section lays out the legal requirements for effectuating service on organizational and individual defendants and argues why the Plaintiff has not met such requirements as to Defendants Workers United, Hervey and Fox.

B. The Court Must Dismiss the Claims Against Defendants Workers United, Hervey and Fox Due to Insufficient Service

1. Insufficient Service Under Rules 12(b)(4) and 12(b)(5)

A court cannot exercise jurisdiction over a defendant who was not properly served.

[6] Even if an alleged breach premised on the Union's failure to respond to his April 2025 email did not accrue immediately, the Plaintiff waited nearly fourteen months to assert the claim.

[7] Defective service on Defendants Workers United, Jean Hervey and Lynne Fox excuses them from having to file an answer, as the Plaintiff has not invoked the Court's jurisdiction over them. However, they file the accompanying Motions to Dismiss (briefed herein) out of an abundance of caution.

1. Insufficient Service Under Rules 12(b)(4) and 12(b)(5)

McGuire v. Sigma Coatings, Inc., 48 F.3d 902, 907 (5th Cir.1995). To challenge the form of the summons, a defendant should file a motion to dismiss for insufficient process under Rule 12(b)(4). WRIGHT & MILLER ET AL., FEDERAL PRACTICE & PROCEDURE, CIVIL § 1353 at nn.4–6. (4th ed.). To challenge the method of service attempted by the plaintiff, the defendant should file a motion to dismiss for insufficient service under Rule 12(b)(5). *Id.* at nn.5–6. Because of confusion between the two insufficiencies, it is appropriate to present service issues under both Rule 12(b)(4) and 12(b)(5). *Adams v. AlliedSignal Gen. Aviation Avionics*, 74 F.3d 882, 884 n.2 (8th Cir. 1996).

2. Service on an Association or on an Individual

The Federal Rules specify the procedures for effecting service on an entity:

> **Serving a Corporation, Partnership, or Association.** Unless federal law provides otherwise or the defendant's waiver has been filed, a domestic or foreign corporation, or a partnership or other unincorporated association that is subject to suit under a common name, must be served: (1) in a judicial district of the United States: (A) in the manner prescribed by Rule 4(e)(1) for serving an individual; or (B) by delivering a copy of the summons and of the complaint to an officer, a managing or general agent, or any other agent authorized by appointment or by law to receive service of process.

Fed. R. Civ. P. 4(h). In turn, Rule 4(e)(1), referenced above, permits service on an individual by following state law for serving a summons in the state where the district court is located, or by personal delivery, abode service, or service by an agent. Fed. R. Civ. P. 4(e).

Texas law specifies the manner of service of process upon an unincorporated nonprofit association. Tex. Bus. Orgs. Code Ann. § 252.013. Texas law also states the manner of service of process upon an individual, by delivery in person or by registered or certified mail, return receipt requested. Tex. R. Civ. P. 106.

3. The Plaintiff Has Not Served Within a Judicial District of the United States.

> **Serving an Individual Within a Judicial District of the United States.** Unless federal law provides otherwise, an individual—other than a minor, an incompetent person, or a person whose waiver has been filed—may be served in a judicial district of the United States by:
>
> (1) following state law for serving a summons in an action brought in courts of general jurisdiction in the state where the district court is located or where service is made; or
>
> (2) doing any of the following:

The documents filed with the Court fail to show that the Plaintiff has effectuated service on Jean Hervey or on Lynne Fox via personal service, certified mail, at their usual place of abode with a resident of suitable age or via an agent. Defective service on Defendants Workers United, Jean Hervey and Lynne Fox excuses them from having to file an answer, as the Plaintiff has not invoked the Court's

(W.D. Tex. July 16, 2024), *aff'd*, No. 24-50597, 2025 WL 25693 (5th Cir. Jan. 3, 2025). Under the LMRA, individual union officers and representatives are not personally liable for actions performed in their capacities as union officers, representatives, or members. *Washington v. Nat'l Postal Mail Handlers Union Local 311*, No. 4:11-CV-098-A, 2012 WL 646354, at *9 (N.D. Tex. Feb. 28, 2012) (citing *Atksinon v. Sinclair Refining Co.*, 370 U.S. 238, 245 (1962)).

Because there is no individual liability under Title VII, the ADA, the ADEA, 42 U.S.C. § 1981, and duty of fair representation claims, those claims against individual Defendants Jean Hervey and Lynne Fox must be dismissed. The Plaintiff does not allege (nor could he) that Hervey or Fox are "essentially the same" as the organizational defendants for purposes of his 42 U.S.C. § 1981 claim. Because repleading would not allow the Plaintiff to overcome those obstacles, those claims must be dismissed with prejudice. *Martin's Herend Imports*, 195 F.3d at 771; *Stripling*, 234 F.3d at 872–73.

V. CONCLUSION

WHEREFORE, the Defendants respectfully request that the Court grant their motion and dismiss the Plaintiff's amended complaint.

Respectfully submitted,

/s/ Manuel Quinto-Pozos

Manuel Quinto-Pozos
Texas Bar No. 24170459
Deats Durst & Owen PLLC
2901 Bee Caves Rd., Suite L
Austin, TX 78746
512-474-6200
512-474-7896 (fax)
mqp@ddollaw.com

James Sanford
Gillespie Sanford LLP
Texas State Bar Number: 24051289
4803 Gaston Ave.

C. The Court Must Dismiss the Claims Against Hervey and Fox Because None of Plaintiff's Causes of Action Impose Individual Liability

CERTIFICATE OF SERVICE

I, the undersigned attorney for the Defendants, hereby certify that this document has been electronically served on the following on this 21st day of September, 2026.

Plaintiff Jerald Coney, jerryconey96@gmail.com

/s/ Manuel Quinto-Pozos

Respectfully submitted,

/s/ Manuel Quinto-Pozos
Manuel Quinto-Pozos
Texas Bar No. 24137459
DEATS DURST & OWEN PLLC
2901 Bee Caves Rd., Suite L
Austin, TX 78746
512-474-6200
mqp@ddollaw.com
Attorneys for Defendants Southwest Regional Joint Board and Jean Hervey

/s/ James Sanford
James Sanford
Texas State Bar Number: 24051289
GILLESPIE SANFORD LLP
4803 Gaston Ave., Dallas, Texas 75246
Tel: 214.800.5111
jim@gillespiesanford.com
Attorneys for Workers United and Lynne Fox

Dallas, Texas 75246
Tel: 214.800.5111
Fax: 214.838.0001
jim@gillespiesanford.com
Attorneys for Defendants Southwest Regional Joint Board and Jean Hervey

Robert E. Bloch
Admitted Pro Hac Vice
Dowd, Bloch, Bennett, Cervone, Auerbach & Yokich, LLP
Illinois Bar Number: 6187400
8 South Michigan Avenue, 19th Floor
Chicago, IL 60603
Phone: 312-372-1361
Fax: 312-372-6599
rebloch@laboradvocates.com

James Sanford
Gillespie Sanford LLP
Texas State Bar Number: 24051289
4803 Gaston Ave.
Dallas, Texas 75246
Tel: 214.800.5111
Fax: 214.838.0001
jim@gillespiesanford.com

Attorneys for Workers United and Lynne Fox

CERTIFICATE OF SERVICE

I, the undersigned attorney for the Plaintiff, hereby certify that this document has been electronically served on the following on this 21st day of September, 2026.

Plaintiff Jerald Coney
jerryconey96@gmail.com

/s/ Manuel Quinto-Pozos
Manuel Quinto-Pozos